

अखिलभारतीयआयुर्विज्ञानसंस्थान, मंगलगिरी
ALL INDIA INSTITUTE OF MEDICAL SCIENCES, MANGALAGIRI
A CAB under Ministry of Health & family Welfare, Government of India

Tender No. AIIMS/MG/Proc/2026-27/Advt. Agency



**NOTICE INVITING TENDER FOR ENGAGEMENT OF
ADVERTISING AGENCY FOR PUBLICATION OF
ADVERTISEMENTS OF AIIMS MANGALAGIRI IN NEWSPAPERS AT
DAVP/DIPR RATES ON MAXIMUM DISCOUNT BASIS**

DISCLAIMER

This Tender is not an offer by the All-India Institute of Medical Sciences, Mangalagiri but an invitation to receive offer from vendors/bidders. No contractual obligation whatsoever shall arise from the tender process unless and until a formal contract is signed and executed by duly authorized Officers of the All-India Institute of Medical Sciences, Mangalagiri with the vendor/ bidder.

Mangalagiri, Guntur District, Andhra Pradesh - 522503

Website: www.aiimsmangalagiri.edu.in

Tendering Portal: www.eprocure.gov.in/eprocure/app

Email: procurement@aiimsmangalagiri.edu.in

TENDER NOTICE

**NOTICE INVITING TENDER FOR ENGAGEMENT OF ADVERTISING AGENCY FOR
PUBLICATION OF ADVERTISEMENTS OF AIIMS MANGALAGIRI IN NEWSPAPERS AT
DAVP/DIPR RATES ON MAXIMUM DISCOUNT BASIS
Tender No. AIIMS/MG/Proc/2026-27/Advt. Agency**

Critical Data Sheet	
Mode of Tender	E- Tender
Type of Bid	Two Cover Bid
Tender Publishing Date	11/05/ 2026 @ 05.00 PM
Pre- Bid meeting	18/05/ 2026 @ 03:00PM
Pre – Bid meeting venue	Room no: 2151, Procurement cell, AIIMS Mangalagiri
Last date and time for submission of Tender	01/06/ 2026 @ 05.00 PM
Date and time for opening of tender	02/06/ 2026 @ 05.00 PM
EMD	Rs. 1,00,000/-
Performance Security Deposit	Rs. 1,50,000/-
Period of Contract	Two years from the date of work order may be extendable further every 6 months up to 1 year
Validity of Bid	180 days after Bid Opening
For viewing, quoting the detailed NIT bidders may also visit our website	http://aiimsmangalagiri.edu.in https://eprocure.gov.in/eprocure/app
For Communication	Procurement cell, AIIMS Mangalagiri, Guntur, Andhra Pradesh 522503 Email: procurement@aiimsmangalagiri.edu.in

The Executive Director, AIIMS Mangalagiri invites Tenders in Two Bid System (i.e., Technical and Financial Bid) from reputed, experienced Bidders for Engagement of Advertising Agency for Publication of Advertisements of AIIMS Mangalagiri in Newspapers at DAVP/DIPR Rates on Maximum Discount Basis through on-line e-procurement portal www.eprocure.gov.in

The Tender documents are also available in our website: www.aiimsmangalagiri.edu.in, Bidders have to submit the bids online by uploading all the required documents through www.eprocure.gov.in Bids for this tender will be accepted through online only.

The Bidder is expected to examine all instructions, forms, terms and specifications in the bidding document. The bid should be precise, complete and in the prescribed format as per the requirement of the bid document. Failure to furnish all information required by the bidding document or submission of a bid not responsive to the bidding documents in every respect will be at the Bidder's risk and may result in rejection of the bid. The Procurement of goods and services under this tender will be regulated as per the applicable provision of Public Procurement (Preference to Make in India), order 2017 of MoC&I (DIPP), Govt. Of India, and subsequent amendments thereof. Therefore, bidders who are claiming to be regulated under the said order are to submit documentary evidence in support of their claim. The Bidder shall bear all costs associated with the preparation and submission of its bid and AIIMS, Mangalagiri will in no case be held responsible or liable for these costs, regardless of the conduct or outcome of the bidding process.

The Executive Director, AIIMS Mangalagiri reserves the right to accept or reject any quotation in full or part thereof without assigning any reason.

Manual bids and conditional bids will not be accepted under any circumstances and will be out rightly rejected.

FI/C (Procurement cum Stores)
For Executive Director, AIIMS Mangalagiri

SCOPE OF WORK

1. Institute's advertising works ranges from Tender/ Recruitment/ Admissions/ Notices/Miscellaneous advertisements to full-fledged advertisements are expected to be released in major newspapers all over the country at short notice.
 - a) Content development for advertisement in English and Hindi
 - b) Translation of matter from English to Indian languages and vice-versa and proof reading
 - c) Designing of advertisement in English and Hindi
 - d) Release of advertisements in specified newspapers as given in work order
 - e) Collation of copies of all newspapers which have published the advertisement and supplying that to AIIMS, Mangalagiri along with bill
2. To cater to such requirement's, Advertising Agency is required to have good infrastructure and have adequate experience in the field. These should include creation of artwork, concept, design, editing & release of advertisements in Newspapers.

TECHNICAL BID DOCUMENTS

Documents for establishing Bidders eligibility:

1. Scanned copy of EMD/ Bid security to be uploaded. If the firm is a MSME, relevant documentary evidence may be provided for claiming exemption from payment of EMD/Bid Security to be uploaded.
2. Signed and scanned copy of duly attested copy of Aadhar, PAN, GST, and firm registration certificate/ Certificate of Incorporation.
3. Signed and Scanned copy of all annexure in given format.
4. The agency should be able to execute all kinds of advertising assignment.
5. Accreditation of Indian Newspaper Society (INS) for Press Advertisement.
6. Resources to handle full-fledged multi-lingual publicity campaigns with high standard of creativity in advertising befitting the expectations of a premier professional Institute.
7. Proficiency and proof-reading facilities in major Indian languages especially in Telugu, Hindi & English.
8. Valid document in support of Registered/Branch office nearby location at Krishna/ Guntur Dt.
9. Minimum 3 (Three) years' experience in advertising with experience of work undertaken for Govt./ PSU/ Higher Education Institution/ Central University, Autonomous Bodies and professional Institutes like IIMs, IITs. Copy of letter of empanelment along with satisfactory completion certificates from at least two Govt. Depts./ PSUs/ Autonomous Bodies/ reputed commercial organizations towards providing similar services. List of 5 major clients from Govt. / PSU/ Higher Education Institute / Central Universities / IIT / IIM etc.
10. The bidder should have not been debarred/black listed/should have not been terminated /ceased without completing the entire duration of contract period by any Central/State Govt. Department, Public Sector Undertaking, Autonomous Bodies, Academic Institutions, CFTIs etc. during past five years from the last date of submission of bids.
11. The Advertising Agency should have adequate infrastructure for timely publication.
12. Attach copy of last three year's Income Tax Return.
13. **Turnover:** The Minimum average annual turnover for last three years should not be less than Rs 25, 00,000/- (Rupees Twenty-Five lakh only). Bidders to submit last three year's turnover, balance sheet and profit& loss statements duly certified by the Chartered Accountant.

Firm/company who have withdrawn after participating in any of the previous tenders of All India Institute of Medical Sciences – Mangalagiri are not eligible to participate in this tender.

Note:

1. Institute may ask the vendor to submit any other certificate/document as it may deem fit.
2. No Joint Venture/ Consortium is allowed to participate in the Tender Process
3. Bidders are requested to upload the clearly visible documents only. Eligible documents shall be liable for rejection without any further communication.
4. Notwithstanding anything stated above, the Institute reserves the right to assess the Bidder's capability and capacity to perform the contract satisfactorily before deciding on award of contract, should circumstances warrant such an assessment in the overall interest of the purchaser.

GENERAL INSTRUCTIONS TO BIDDERS (GIB)

1. PREAMBLE: -

- i) **Pre-Bid Meeting:** -The pre-bid Tender meeting will be held on **18-05-2026@ 03:00PM** at Room no: 2151, Procurement cell, Logistic block, Opp. Mortuary building, AIIMS Mangalagiri. The agency(s) may get clarified any confusion regarding any terms and condition of the contract during pre-bid meeting and thereafter any claim of doubt/confusion or any things relating to this contract will not be entertained and it will be deemed that the agency has understood everything about this tender. Based on queries of the bidders, committee members will decide to issue any amendments/corrigendum for the tender.

ii) **Language of Tender:**

The tender submitted by the bidder, and all subsequent correspondence and documents relating to the tender exchanged between the bidder and the purchaser, shall be written in the English language, unless otherwise specified in the Tender Enquiry. However, the language of any printed literature furnished by the bidder in connection with its tender may be in any other language, provided the same is accompanied by an English translation. For the purpose of interpretation of the tender, the English translation shall prevail.

iii) **Tendering Expenses:**

The bidder shall bear all costs and expenditure incurred and/or to be incurred by it in connection with its tender, including the preparation, mailing, and submission of its tender, as well as for subsequent processing of the same. The purchaser shall, in no case, be responsible or liable for any such cost or expenditure, regardless of the conduct or outcome of the tendering process.

iv) **Clarification of Tender Documents:**

a) Any queries relating to the tender document and the terms and conditions contained therein should be addressed to the Tender Inviting Authority or the relevant contact person indicated in the tender.

b) Any queries relating to the process of online bid submission or queries relating to the CPP Portal in general may be made to the 24x7 CPP Portal Helpdesk.

2. Tender Prices:-

- a. The bidder shall indicate all specified components of prices shown therein on the Price Schedule provided in BOQ including the unit prices, applicable taxes and total bid prices of goods and services. The entire column shown in BOQ should be filled up as required.
- b. The bidder supplying indigenous goods or already imported goods shall quote only in Indian Rupees (INR).
- c. Bids, where prices are quoted in any other way shall be treated as non - responsive and will be rejected.

3. Contract period: The Period of contract is initially for a period of (2) Two years and can be continued / renewed for every six months upto a total of (1) one year subject to performance evaluation of food safety monitoring committee and approval of competent authority of AIIMS, Mangalagiri and on mutual consent of both the parties in accordance with/ rules framed by the Government of India from time to time with same terms and conditions.

4. Bid validity: -The bids shall remain valid for acceptance for a period of 180 days after the date of tender opening prescribed in the tender document. Any tender valid for a shorter period shall be treated as unresponsive and rejected.

5. Scrutiny and Evaluation of Tenders:-

- a) Tenders will be evaluated on the basis of the terms & conditions incorporated in the tender document.
- b) The Purchaser will examine the Tenders to determine whether they are complete, devoid of computational errors, sureties furnished, documents signed & stamped etc.
- c) The Purchaser's determination of a Tender's responsiveness will be based on the contents of the tender itself without recourse to extrinsic evidence.

6. Award of Contract: Purchaser will award the contract to the successful Bidder whose bid has been determined to be substantially responsive and has been determined to be the lowest evaluated bid, provided further that the Bidder is determined to be qualified to perform the contract satisfactorily. The Institute reserves the right to counter offer price(s) against price(s) quoted by any bidder. The decision to award the contract will be taken on the basis of prices quoted, feasibility, quality.

7. Non- responsive tender:-Non submission of the following will lead to the tender to be declared non- responsive and summarily rejected:

- a) Tender Acceptance Form as per Annexure-I (signed & stamped) not uploaded.
- b) Bid validity is shorter than the required period.
- c) Required Bid Security (Amount, validity etc.)/ Exemption documents have not been uploaded as per stipulated provisions
- d) Bidder has not agreed to give the required performance security of required amount in an acceptable form for due performance of the contract.
- e) Bidder has not agreed to other essential condition(s) specially incorporated in the Tender like terms of payment, liquidated damages, comprehensive warranty, dispute resolution mechanism, and applicable law.
- f) Poor/unsatisfactory past performance.
- g) Bidders who stand de-registered/ banned/ blacklisted by any Central Govt. Ministries/ Departments/ Hospitals/Institutes.

8. Discrepancies in Prices: The Bidder(s) shall quote Rate up-to two decimals only. Only the first two decimals will be considered for quotation is having more than two decimals.

9. Purchaser's Right to accept any tender and to reject any or all tenders:The purchaser reserves the right to accept in part or in full any tender or reject any or more tender(s) without assigning any reason or to cancel the tendering process and reject all tenders at any time prior to award of contract, without incurring any liability, whatsoever to the

affected bidder or bidders

10. **Corrupt or Fraudulent Practices:** It is required by all concerned namely the Consignee/Bidders/Suppliers etc to observe the highest standard of ethics during the procurement and execution of such contracts. In pursuance of this policy, the Purchaser defines, for the purposes of this provision, the terms set forth below as follows: -
 - a) “corrupt practice” means the offering, giving, receiving or soliciting of anything of value to influence the action of a public official in the procurement process or in contract execution; &
 - b) “fraudulent practice” means a misrepresentation of facts in order to influence a procurement process or the execution of a contract to the detriment of the Purchaser, and includes collusive practice among Bidders (prior to or after Tender submission) designed to establish Tender prices at artificial non-competitive levels and to deprive the Purchaser of the benefits of free and open competition;
 - c) A proposal will be rejected for award if it is determined that the Bidder recommended for award has engaged in corrupt or fraudulent practices in competing for the contract in question;
 - d) Will declare a firm ineligible, either indefinitely or for a stated period of time, if it at any time it is determined that the firm has engaged in corrupt or fraudulent practices in competing for, or in execution of the contract.
11. The competent authority reserves the right to accept or reject any or all tenders without assigning reasons.
12. The competent authority reserves the right to modify, add or delete any terms & conditions of the contract as and when required.

TERMS & CONDITIONS

1. One contractor or contractors having business relationship shall submit not more than one tender. Under no circumstance, father and his son(s) or other close relations who have business relationship with one another (i.e. when one or more partner(s)/director(s) are common) be allowed to tender for the same contract as separate competitors. A breach of this condition will render the tenders of both parties liable to rejection.
2. **Earnest Money Deposit:** EMD amounting to Rs. 1,00,000/- (Rupees One Lakh only) (refundable to unsuccessful bidders after award of the contract). **The payment shall be made in the form of Insurance security bonds, Account Payee, Demand Draft, Fixed Deposit Receipt, Bankers Cheque or Bank Guarantee from any commercial bank, may be drawn in the favor of “AIIMS Mangalagiri – GIA General” or deposit /transfer to the following Bank Account details (Account no: 38307771792, IFSC- SBIN0061485, A/c Name- AIIMS Mangalagiri – GIA General) or payment online in an acceptable form safeguarding the purchaser’s interest in all respects.**
 - a) The earnest money shall be valid for a period of Forty Five (45) days beyond the validity period of the tender. As validity period of Tender as per Clause 20 of GIT is 180 days, the EMD shall be valid for 240 days from Techno – Commercial Tender opening date.
 - b) The EMD should be furnished along with the technical bid.

The Original DD EMD should reach **O/o Procurement Cell, Room no: 2151 Logistic Block, AIIMS Mangalagiri, Guntur -522503** within the bid submission date and time for the tender. Bids received without EMD or Late will be rejected.

Exemption: Bidders seeking exemption from Earnest Money Deposit (EMD) such as MSEs, Startups, must submit valid supporting documents relevant to their eligible

category along with the bid. Under the Micro and Small Enterprises (MSE) category, only manufacturers (for goods) and service providers (for services) are eligible for EMD exemption. Traders are not eligible under this policy. All such exemptions shall be governed and processed in accordance with the guidelines issued from time to time by the Ministry of Micro, Small and Medium Enterprises (MSME), the Department for Promotion of Industry and Internal Trade (DPIIT) and the National Small Industries Corporation Ltd. (NSIC)

3. **Right of acceptance/Rejection:** AIIMS, Mangalagiri reserves the right to accepting the whole or any part or portion of the bid; and the bidder shall provide the same at the rates quoted. The AIIMS Mangalagiri reserve the right to reject any or all tenders / quotations or all offers received in response to the tender or cancel or withdraw the tender notice without assigning any reason thereof and also does not bind itself to accept the lowest quotation or any tender and no claim in this regard shall be entertained.
4. **Assignment:** The bidder shall not assign, either in whole or in part, its contractual duties, responsibilities and obligations to perform the contract, except with the Purchaser's prior written permission.
5. **Signing the Contract:** - The successful bidder shall be required to execute the Contract Agreement accepting all terms and conditions stipulated herein on a non-judicial stamp paper of Rs. 100/- (Rs. One Hundred only) along with performance security within fifteen (15) days from the issue of notification of award. In the event of failure on the part of the successful bidder to sign the Contract within the period stipulated above, the acceptance of BID shall be considered as cancelled.
6. **Performance Security:** -
Performance Security may be furnished in the form of Insurance Security Bonds, Account Payee Demand Draft, Fixed deposit receipt, Bank Guarantee from a commercial bank, may be drawn in the favor of "AIIMS Mangalagiri – GIA General" or bank deposit /transfer to the following Bank Account details (Account no: 38307771792, IFSC-SBIN0061485, A/c Name- AIIMS Mangalagiri – GIA General) or online payment in an acceptable form safeguarding the purchaser's interest in all aspects.
 - a) In case of the contract fails to submit the requisite PSD even after 2 weeks from the date of issue of NOA the contract shall be terminated duly forfeiting the EMD and other dues if any payable against the contract. The failed contractor shall be debarred from participating in re-tender (if any) for that item. Performance Security Deposit is mandatory.
 - b) The security deposit can be forfeited by order of this Institute in the event of any breach or negligence or non-observance of any condition of contract or for unsatisfactory performance or non – observance of any condition of the contract.
 - c) Successful supplier/firm should submit performance Security Deposit as prescribed in favour of "AIIMS, Mangalagiri" and to be received in the *office of Faculty In charge (Procurement), Room no: 2151, Logistic Block, AIIMS Mangalagiri, and Guntur-522503* before the date of commencement of supply or 2 weeks from the date of acceptance of the purchase order, whichever is earlier. The Performance Security Deposit to be furnished in the form of Bank Guarantee as per given Performa of the tender documents, for an amount covering 3% of the contract value.
 - d) Validity of the Performance Security Deposit shall be for a period of 60 days beyond of the warranty period from the date of issue of installation & commissioning
7. **Breach of Terms and Conditions:** In case of breach of any terms and conditions as mentioned above, the Competent Authority, will have the right to cancel the work order/

job without assigning any reason thereof and nothing will be payable by AIIMS, Mangalagiri in that event the security deposit shall stands forfeited.

8. PAYMENTS TERMS:

- a) Payment shall be made after receipt of the final bill, duly supported by all the newspaper clippings (in original) and DAVP/DIPR Rate card.
- b) Bill to be made in the name of Executive Director, AIIMS, Mangalagiri.
- c) No extra payment shall be made for conceptualization, creation, designing and development of Advertisement issued through Newspapers.
- d) Selection of art work will be entirely on Institute's discretion and AIIMS Mangalagiri will not pay charges for submission of art work.
- e) No advance payment will be made to the agency under any circumstances.
- f) TDS/ Income Tax etc. are to be deducted at source from the bills of service provider as per rule

- 9. Fall clause:** If at any time during the period of contract, the price of tendered items is reduced or brought down by any law or act of the Central or State Govt. or by the tenderer himself, the tenderer shall be morally and statutorily bound to inform AIIMS, Mangalagiri immediately about such reduction in the contracted prices. AIIMS, Mangalagiri is empowered to unilaterally effect such reduction as is necessary in rates in case the tenderer fails to notify or fails to agree for such reduction of rates. In case of any enhancement in Taxes due to statutory Act of the Govt. after the date of submission of the tenders and during the tender period, the additional Taxes so levied will be allowed to be charged extra as separate item without any change in price structure of the items approved under the tender. For claiming the additional cost on account of the increase in Taxes, the tenderer should produce letter from the concerned excise authorities indicating his commitment for the supply made to the AIIMS, Mangalagiri on account of the increase in Taxes.
- 10.** No escalation in rates on any account will be permitted during the contract period. Also, no subsidy will be given over the quoted rates.
- 11.** Conditional bid will be treated as unresponsive and it may be rejected.
- 12.** Text of advertisement will be provided by the Institute in electronic format (MS word) through email and the designing/creative options/artwork should be done by the agency to the satisfaction of the Institute.
- 13.** The appointment agency shall arrange for publication of Institute's advertisement from time to time according to the specific instructions such as name of the newspaper(s), number of insertion(s), specific column(s), date of publication etc. These instructions will be communicated in writing by the Institute from time to time.
- 14.** The Agency shall provide the service on 24-hour notice basis to design, translate and release the advertisement. The agency must ensure that the matter of advertisement given is correctly reproduce in the advertisement appearing in the newspaper.
- 15.** AIIMS Mangalagiri is being a Premier Educational Institute, many of the requirements could be of emergent in nature. The Advertising Agency has to respond to such requirements at short notice despite holidays/beyond office hours.
- 16.** Translation from English to Hindi or vice versa of all Advertisements/ Tender notice to be published in other regional newspaper shall be arranged by the agency and no additional charges for translation of the same will be made.
- 17.** Publishing of the advertisement by the advertising agency shall be after approval of advertisement design/artwork. Advertisement is to be published on the specified dates on receipt of Work Order/Confirmation from AIIMS Mangalagiri.
- 18.** All the Advertisements concerning the Institute shall be issued with the prior approval of the AIIMS Mangalagiri.

19. It shall be the responsibility of the agency to ensure that all advertisements of the Institute would be placed prominently and appear in an impressive manner while occupying minimum space without any extra cost.
20. AIIMS Mangalagiri reserves the right to make necessary modification to the selected artwork, concept etc. and the concerned Advertising Agency will be required to carry out the modifications suggested in the art work.
21. **Penalty Clause:** In case of delay in publishing the advertisement beyond 24 hrs. from the schedule time given, the agency would be liable to pay 2% of cost of the advertisement per day per advertisement which may entail cancellation of the order and termination of the empanelment at the sole discretion of the Institute.
22. If the Advertisement is misprinted differently from the approved one, the Agency will publish corrigendum/correct Advertisement etc. there of at their own cost at the earliest (within a week).
23. AIIMS Mangalagiri shall have discretion to give any work to any appointed agency selected through tendering process and the other agency will not have to claim for the work.
24. The agency shall not mean that the Institute cannot release advertisements directly/through any other agency without routing through the agency empanelled through this tendering process.
25. The Advertising Agency is expected to maintain high level of professional ethics and will not act in any manner, which is detrimental to Institute's interest. Agency will maintain confidentiality on matters disclosed till proper instruction is issued for publication. AIIMS Mangalagiri reserves the right to impose penalty in case of any violation of the above.
26. The agency will not be allowed to assign or sublet the empanelment or any part of it to any other vendor/agency in any form. Failure to do so shall result in the termination of empanelment.
27. The performance of the Agency shall be regularly reviewed on the key parameters of creativity, initiative, competency and response time and participation in the tendering process. In the event that Agency fails to meet our requirements, we shall be constrained to terminate the empanelment by serving one month's prior notice.
28. If the services of the agency are not found satisfactory, Executive Director, AIIMS Mangalagiri shall have the right to cancel the empanelment at any time without assigning any reason and without any financial compensation to the agency.
29. The Institute will have the right to drop any Agency from the empanelled list without assigning any reason whatsoever. Institute also reserves the right to modify the Terms and Conditions for empanelled Agencies.
30. Canvassing/marketing /offering promotional services etc. in any form whether directly or indirectly in connection with the tender is strictly prohibited and the tenders submitted by the Agency/ Firm/ Company who resort to canvassing will be liable for rejection without any further reference.
31. AIIMS Mangalagiri reserves the right to modify, expand, change, alter, restrict, scrap, refloat or cancel the Tender at any stage without assigning any reason whatsoever.
32. AIIMS Mangalagiri reserves the right to relax/amend/add/withdraw any of the terms and conditions contained in the Tender Document without assigning any reason thereof. Any enquiry after submission of the quotation will not be entertained.
33. The decision of Competent Authority, AIIMS Mangalagiri will be final in all matters relating to the empanelment and binding. AIIMS Mangalagiri reserves the right to reject any application without assigning any reason.

34. Subletting of Contract: Bidder shall not be allowed to transfer, assign, pledge or subcontract its rights and liabilities under this contract to any other Second Party without prior written consent of the AIIMS Mangalagiri.

35. Penalties for non-performance

The penalties to be imposed, at any stage, under this tender are;

- a) imposition of liquidated damages,
- b) forfeiture of EMD/performance security,
- c) Termination of the contract,
- d) Blacklisting/debarring of the bidder

36. The contract may be terminated by the Contractor after giving a notice of three months whereas AIIMS, Mangalagiri can terminate the contract after giving one month notice period. However, AIIMS, Mangalagiri can terminate the contract after giving one week time during the initial period of three months. In case of termination of the contract due to poor performance of the contract as decided by the AIIMS, Mangalagiri or termination of the contract by the Contractor before the stipulated period of the contract, the security Deposit of the contractor will be forfeited.

37. Force Majeure:-

- (i) For purposes of this clause, Force Majeure means an event beyond the control of the supplier and not involving the supplier's fault or negligence and which is not foreseeable and not brought about at the instance of, the party claiming to be affected by such event and which has caused the non – performance or delay in performance. Such events may include, but are not restricted to, wars or revolutions, hostility, acts of public enemy, civil commotion, sabotage, fires, floods, explosions, epidemics, quarantine restrictions, strikes excluding by its employees, lockouts excluding by its management.
- (ii) If a Force Majeure situation arises, the supplier shall promptly notify the Purchaser/Consignee in writing of such conditions and the cause thereof within twenty-one days of occurrence of such event. Unless otherwise directed by the Purchaser/Consignee in writing, the supplier shall continue to perform its obligations under the contract as far as reasonably practical, and shall seek all reasonable alternative means for performance not prevented by the Force Majeure event.
- (iii) If the performance in whole or in part or any obligation under this contract is prevented or delayed by any reason of Force Majeure for a period exceeding sixty days, either party may at its option terminate the contract without any financial repercussion on either side.
- (iv) In case due to a Force Majeure event the Purchaser/Consignee is unable to fulfil its contractual commitment and responsibility, the Purchaser/Consignee will notify the supplier accordingly and subsequent actions taken on similar lines described in above sub-paragraphs.

38. Arbitration / Resolution of disputes: - In the event of any dispute or difference(s) between the Contractee (AIIMS Mangalagiri) and the Contractor(s) arising out related to Contract shall be referred to the Executive Director AIIMS Mangalagiri who may decide the matter himself or may appoint arbitrator(s) under the arbitration and conciliation Act 1996. The decision of the arbitrator shall be final and binding on both the parties. If the parties fail to resolve their dispute or difference by such mutual consultation within twenty- one days of its occurrence then, either the Purchaser/Consignee or the supplier may give notice to the other party of its intention to commence arbitration.

39. Applicable Law & Jurisdiction of Courts: The contract shall be governed by and interpreted in accordance with the laws of India for the time being in force. All disputes arising out of this tender will be subject to the jurisdiction of courts of law in

Mangalagiri/Vijayawada/Guntur (Andhra Pradesh, India).

INSTRUCTIONS FOR ONLINE BID SUBMISSION

1. REGISTRATION

- a) Bidders are required to enroll on the e-Procurement module of the Central Public Procurement Portal (URL: <https://eprocure.gov.in/>) by clicking on the link “Online Bidder Enrollment” on the CPP Portal, which is free of charge.
- b) As part of the enrollment process, the bidders will be required to choose a unique username and assign a password for their accounts.
- c) Bidders are advised to register their valid email address and mobile numbers as part of the registration process. These will be used for any communication from the CPP Portal.
- d) Upon enrollment, the bidders will be required to register their valid Digital Signature Certificate (Class III Certificates with signing key usage), issued by any Certifying Authority recognized by CCA India (e.g., Sify / nCode / eMudhra, etc.), with their profile.
- e) Only one valid DSC should be registered by a bidder. Please note that bidders are responsible for ensuring that they do not lend their DSCs to others, which may lead to misuse.
- f) The bidder shall then log in to the site through a secured login by entering their user ID/password and the password of the DSC/e-Token.

2. SEARCHING FOR TENDER DOCUMENTS

- A) There are various search options built into the CPP Portal to facilitate bidders in searching active tenders using several parameters. These parameters may include Tender ID, Organization Name, Location, Date, Value, etc. There is also an option of advanced search for tenders, wherein bidders may combine a number of search parameters such as Organization Name, Form of Contract, Location, Date, and other keywords to search for a tender published on the CPP Portal.
- B) Once the bidders have selected the tenders they are interested in, they may download the required documents/tender schedules. These tenders can be moved to the respective “My Tenders” folder. This will enable the CPP Portal to intimate the bidders through SMS/email in case there is any corrigendum issued for the tender document.
- C) The bidder should make a note of the unique Tender ID assigned to each tender, in case they want to obtain any clarification/help from the Helpdesk.

3. PREPARATION OF BIDS

- i) Please go through the tender advertisement and the tender document carefully to understand the documents required to be submitted as part of the bid. Any deviation from these may lead to rejection of the bid.

ii) The bidder, in advance, should prepare the bid documents to be submitted as indicated in the tender document/schedule. Generally, they can be in PDF/XLS/RAR/DWF/JPG formats. Bid documents may be scanned with 100 dpi in black and white mode to reduce the size of the scanned document.

iii) To avoid the time and effort required in uploading the same set of standard documents required for every bid, a provision has been made for uploading such standard documents (e.g., PAN card copy, auditor certificates, etc.). Bidders can use the “My Space” or “Other Important Documents” area available to upload such documents. These documents may be directly submitted from the “My Space” area while submitting a bid and need not be uploaded repeatedly. This will help reduce the time required for the bid submission process.

4. CORRIGENDUM

a) At any time prior to the deadline for submission of bids, the purchaser may, for any reason deemed fit, modify the Tender Enquiry Document by issuing a suitable corrigendum.

b) Corrigendum in technical specifications issued after the pre-bid meeting will be final, and no further corrigendum will be issued thereafter.

c) Corrigendum will be notified through <https://eprocure.gov.in/eprocure/app> and the website of AIIMS Mangalagiri.

5. SUBMISSION OF BIDS

a) The bidder should log in to the site well in advance for bid submission so that the bid can be uploaded on time (i.e., on or before the bid submission time). The bidder will be responsible for any delay due to other issues.

b) The bidder has to digitally sign and upload the required bid documents one by one as indicated in the tender document.

c) Bidders are requested to note that they must submit their financial bids in the prescribed format only. No other format is acceptable. If the price bid is provided in a standard BOQ format with the tender document, it must be downloaded, filled, and uploaded. Bidders should fill only the white-colored (unprotected) cells with their financial quotes and other details (such as the name of the bidder). No other cells should be modified. After completing the details, the file should be saved and uploaded without changing the filename. If the BOQ file is found to be modified, the bid will be rejected.

d) The server time (as displayed on the bidder’s dashboard) will be considered as the standard time for referencing deadlines for submission of bids, opening of bids, etc. Bidders should follow this time during submission.

e) Upon successful and timely submission of bids (i.e., after clicking “Freeze Bid Submission” in the portal), a successful submission message will be displayed along with a bid summary, including the bid number and date & time of submission, along with other relevant details.

f) The bid summary should be printed and kept as an acknowledgement of submission. This acknowledgement may be used as an entry pass for any bid opening meetings.

6. ASSISTANCE TO BIDDERS

a) Any queries relating to the tender document and the terms and conditions contained therein should be addressed to the Tender Inviting Authority or the relevant contact person indicated in the tender.

b) Any queries relating to the process of online bid submission or queries relating to the CPP Portal in general may be directed to the 24x7 CPP Portal Helpdesk.

If you want, I can convert this into a **proper official PDF or Word format layout** used in AIIMS tender documents.

Institute website: <http://aiismangalagiri.edu.in>

E-Tendering Portal:

<https://eprocure.gov.in/eprocure/app>

For any technical related queries please call at 24 x 7 Help Desk Number
0120-4001 002, 0120-4001 005, 0120-6277 787

Email Support: cpp-doc@nic.in, support-eproc@nic.in

Tender queries: procurement@aiismangalagiri.edu.in

CHECK LIST FOR TERMS AND CONDITIONS**A. Checklist of documents to be submitted online:**

S. No.	Documents	Uploaded (Yes/No)	Ref. Page No.
a)	Signed and scanned copy of duly attested copy of PAN, GST		
b)	Signed and Scanned copy of Tender Acceptance letter Annexure I		
c)	Signed and scanned copy of Power of Attorney Annexure III		
d)	Copy of duly attested copy of Profile of firm Annexure II		
e)	Copy of duly attested copy of EMD		
f)	Copy of Valid INS Accreditation Certificate indicating full accreditation by INS		
g)	The bidder must have experience for 03 years (prior to ending month of bid opening) of providing similar type of services to any Central/State Govt. Organization/PSU/Public Listed Company. Copies of relevant contracts/orders to be submitted along with bid in support of having provided services during each of the Financial Year. In this regard list of such clients is also to be uploaded as per Annexure-VI along with contract order copies.		
h)	Signed and Scanned Copy Self-Declaration About Non-Black-Listing as per Annexure IV		
i)	Signed and scanned copy of document in support of Registered/Branch office nearby location at Krishna & Guntur Districts Andhra Pradesh.		
j)	Copy of Balance sheets and profit loss statements for last three successive years (2022-23,2023-24,2024-25) duly certified by the Chartered Accountants. (Minimum avg. annual Turnover must be Rs. 25 Lacs) and Annexure V		
k)	Attach copy of last three year's Income Tax Return.		
l)	Signed and scanned copy of Integrity pact in Rs. 100 stamp paper Annexure VII		

Note: In case of non-fulfilment of any of the above information/ document(s), the Tender will be summarily rejected without giving any notice.

I/we..... (Name of the Authorized Representative of Bidder) of..... (Name of the bidder) do hereby declare that the entries made here are true to the best of my/our knowledge. I/We hereby agree to abide by all terms and conditions laid down in tender document.

Place & Date: (Name & signature with stamp of the bidder)

PRICE BID FORM

S. No	Description	Discount offered on DAVP/DIPR Rates to be entered by the bidder in percentage %	Total Discount Percentage Offered In Rs. P	Total Discount Percentage In Words
1	Publication of AIIMS Mangalagiri Advertisements in Newspapers at DAVP/DIPR Rates			

*GST extra as applicable

The technically qualified firm which quotes highest Discount offered on DAVP/DIPR rates (H1) shall be awarded the tender.

Note:

After due evaluation of the bid(s) Institute will award the contract to the highest evaluated responsive Bidder.

Declaration by the Bidders:

This is certify that I/We before signing this Bid have read and fully understood all the terms and conditions contained herein and undertake myself/ ourselves to abide by them.

Name: -
 Address: -
 Phone No: -
 Email: -
 Seal: -

Place:-

Date :-

Annexure-I

TENDER ACCEPTANCE LETTER
(To be given on Company Letter Head)

Date:

To,
The Executive Director,
AIIMS Mangalagiri

Sub: Acceptance of Terms & Conditions of Tender.

Tender Reference No: _____

Name of Tender / Work: _____

Dear Sir,

1. I/ We have downloaded / obtained the tender document(s) for the above mentioned 'Tender/ Work' from the web site(s) namely: _____ as per your advertisement, given in the above-mentioned website(s).
2. I / We hereby certify that I / we have read the entire terms and conditions of the tender documents from Page No. _____ to _____ (including all documents like annexure(s), schedule(s), etc.), which form part of the contract agreement and I / we shall abide hereby by the terms / conditions / clauses contained therein.
3. The corrigendum(s) issued from time to time by your department/ organization too has also been taken into consideration, while submitting this acceptance letter.
4. I / We hereby unconditionally accept the tender conditions of above-mentioned tender document(s) / corrigendum(s) in its totality / entirety.
5. I / We do hereby declare that our Firm has not been blacklisted/ debarred by any Govt. Department/Public sector undertaking.
6. I / We certify that all information furnished by our Firm is true & correct and in the event that the information is found to be incorrect/untrue or found violated, then your department/ organization shall without giving any notice or reason therefore or summarily reject the bid or terminate the contract, without prejudice to any other rights or remedy including the forfeiture of the full said earnest money deposit absolutely.

Yours Faithfully,

(Signature of the Bidder, with Official Seal)

PROFILE OF THE ORGANIZATION/COMPANY/FIRM
(To be given on Company Letter Head)

FORM A: Particulars of the Firm/Company/Agency		
1.	Name of the firm/Company/Agency	
2.	Type of Firm/Company (Individual/ proprietary/ partnership/ public/private/ limited/ if any specify)	
3.	Type of business (Manufacturer/ Authorized Agent/ Consulting company/ if any specify)	
4.	Website	
5.	Year of Establishment	
6.	Permanent Account No (PAN)	
7.	GST Registration Certificate No	
8.	Communication Address	
9.	Email ID	
10.	Telephone/Phone Number	
Particulars of the firm representative		
11.	Name of the contact person	
12.	Designation	
13.	Email ID	
14.	Mobile No.	

FORM B: Particulars of Firm Bank Details		
15.	Name of the account holder / Firm	
16.	Account Number	
17.	Name of the Bank & Branch	
18.	IFSC Code	
19.	MICR code	
20.	Type of account	
21.	Address	
*Please attach a Cancelled Cheque along with the account information form.		

I hereby declare that the particulars given above are correct and complete. If the transaction is delayed or not effected at all for reasons of incomplete or incorrect information

I would not hold the user institution responsible. I have read the option invitation letter and agree to discharge responsibility expected or me as a participant under the scheme.

Certified that the particulars furnished above are correct as per our records.

Signature of the Authorized

Date:

Designation Office Seal of the Bidder)

Annexure – III

POWER OF ATTORNEY
(On a Stamp Paper of relevant value)

I/ We.....
(name and address of the registered office) do hereby constitute, appoint and authorize Sri/Smt
..... (Name and address) who
is presently employed with us and holding the position ofas
our attorney, to act and sign on my/our behalf to participate in the tender
no..... for
(goods/service/work name).

I/ We hereby also undertake that I/we will be responsible for all action of
Sri/Smt..... Undertaken by him/her during the tender
process and thereafter on award of the contract. His / her signature is attested below

Dated this the ___ day of 20_ For_____

(Name, Designation and Address)

Accepted

(Signature)

(Name, Title and Address of the Attorney)

Date: _____

Annexure - IV

AFFIDAVIT

**DECLARATION REGARDING CRIMINAL LIABILITY, BLACKLISTING /
DEBARRING AND NON-PENALIZE/ PUNISH FOR TAKING PART IN TENDER**

*(To be executed & attested by Public Notary / Executive Magistrate on Rs.100/- non judicial
Stamp paper by the Tenderer)*

I, _____
Proprietor/Director authorized signatory of the agency/Firm (M/s _____
_____), do hereby solemnly affirm and declare as follows:

1. I am authorized signatory of the agency/firm and is competent to sign this affidavit and execute this tender document;
2. I have carefully read and understood entire tender document including all the terms and conditions of the tender and undertake to abide by them;
3. The information / documents furnished along with the above application are true and authentic to the best of my knowledge and belief. I / we, am / are well aware of the fact that furnishing of any false information / fabricated document would lead to rejection of my tender at any stage besides liabilities towards prosecution under appropriate law.
4. I/We further undertake that no case/enquiry/investigation is pending with the police/court/vigilance or any government body against the Proprietor/Partner/Director etc. as individual or against legal entity of the Company /Firm/Agency.
5. I/We further undertake that none of the Proprietor/Partners/Directors of the firm/Agency has not been banned /suspended/blacklisted or debarred in the past by Union / State Government or organization from taking part in Government tenders in India and should not have any litigation in any of the labour court(s).

or

I / We _____ (Tenderer) hereby declare that the Firm / agency namely M/s. _____ was blacklisted or debarred by Union / State Government or any Organization from taking part in Government tenders for a period of years w.e.f. _____ to _____. The period is over on _____ and now the firm/company is entitled to take part in Government tenders.

6. I / We hereby declare that the firm / agency namely has not been penalized in the past years by Labour Court, EPFO & ESI by way imprisonment.

or

7. I / We _____ (Tenderer) hereby declare that the Firm / agency namely M/s. _____

has been penalized / punished by Union / State Government or any Organization from taking part in Government tenders for a period of years w.e.f. _____ to _____ The period is over on _____ and now the firm/ company is entitled to take part in Government tenders.

8. I/We further undertake to report to the O/o Medical Superintendent, AIIMS, Mangalagiri immediately after we are informed but, in any case, not later 15 days, if the Firm/Agency in which Proprietor/Partners/Directors of Firm/Agency which is banned/suspended in future during the Contract with you.
9. I/We further undertake that our firm/company is fulfilling all the terms and conditions/eligibility criteria obvious/explicit or implied/implicit recorded anywhere in the tender document. If at any time including the currency of the Contract, any discrepancy is found relating to our eligibility or the process of award of the contract criteria, this may lead to termination of contract and/or any other action deemed fit by the Institute.
10. In case the above information found false, I / we are fully aware that the tender/ contract will be rejected / cancelled by the AIIMS Mangalagiri, and SD (Security Deposit) shall be forfeited.
11. In addition to the above, the AIIMS, Mangalagiri will not be responsible to pay the bills for any completed /partially completed work.

(Signature of the Bidder)

Attested:

(Public Notary / Executive Magistrate)

Name:

Date

Designation

Place:

Seal of the Agency

I/We do hereby solemnly declare and affirm that the above declaration is true and correct to the best of my knowledge and belief. No part of it is false and nothing has been concealed therein.

Deponent

ANNEXURE – V

ANNUAL TURNOVER STATEMENT

(At the Letter Head of Chartered Accountant)

I/We have examined the books of account and other relevant records of
(bidding firm name), having its registered office at (full
address of bidding firm) and do hereby certify that:

(1) Annual gross turnover as per Annual Accounts of the firm for last three years is as under-

Sl. No.	Financial year	Turnover
1.	2022-23	
2.	2023-24	
3.	2024-25	

(2) Average turnover of the firm for last three financial years is Rs.

Signature of CA (with stamp of Firm)

Name-

(Registration No.-)

(Chartered Accountant)

UDIN Number:

Firm name-

Proprietor name

Signature (with stamp)

Date-

ANNEXURE – VI

Format of Experience certificate

Contract No./Supply order No.	Name of the Purchaser*	Description of work	Qty Supplied	Value of Contract (Rs. In Lakhs)	Date of issue of work order	Stipulated period of completion	Actual date of completion

* Attach certificate(s) of workorders/Contract Agreements.

The “Integrity Pact” on Govt. issued Stamp paper of Rs. 100 Duly filled as per enclosed format to be submitted in original. Bidders to ensure that every page of IP is ink signed with company seal/Stamp in every page

Tender NO.....

INTEGRITY PACT

Between

AIIMS, Mangalagiri, an Autonomous Body under PMSSY, MoHFW (hereinafter referred to as "The Buyer/Employer")

And

..... (herein after referred to as "The Bidder/Seller/Contractor")

and

.....(herein after referred to as "JVPartner /Consortium Members"

(if applicable)

Preamble

The Employer invites the bids from all eligible bidders and intends to enter into Contract for with the successful bidder(s), as per organizational systems and procedures. The Employer values full compliance with all relevant laws and regulations, and the principles of economical use of resources, and off airness and transparency in its relations with its Bidder(s) and/or Contractor(s).

In order to achieve these goals, the Employer will appoint Independent External Monitor(s) (IEM), who will monitor the bidding process and the execution of the Contract for compliance with the principles mentioned above.

Section 1 - Commitments of the Employer

1. The Employer commits itself to take all measures necessary to prevent corruption and to observe the following principles in this regard:-
 - (a) No employee of the Employer, either in person or through family members including relatives, will in connection with the bidding for or the execution of a bid / contract, demand or accept a promise for or accept for him/herself or for a third person, any material or immaterial benefit to which he/she is not legally entitled to.
 - (b) The Employer shall, during the bidding process treat all Bidders/Sellers with equity and reason. The Employer will, in particular, before and during the bidding process, provide to all Bidders/Sellers the same information and will not provide to any Bidder/Seller confidential/additional information through which the Bidder(s)/Seller(s) could obtain an advantage in relation to the bidding process or the Contract execution.
 - (c) The Employer will exclude from the process all known prejudiced persons.

2. If the Employer obtains information on the conduct of any of its employees which is a criminal offence under the IPC/PC Act or if there be a substantive suspicion in this regard, the Employer will inform the Chief Vigilance Officer and in addition can initiate disciplinary actions

Section 2 – Commitments and Undertakings by the Bidder/Contractor

1. The Bidder / Seller / Contractor commits and undertakes to take all measures necessary to prevent malpractices & corruption. He commits himself to observe the following principles during his participation in the bidding process and during the execution of the contract:
 - (a) The Bidder / Seller / Contractor undertakes not to, directly or through any other person or firm offer, promise or give or influence to any employee of the Employer associated with the bidding process or the execution of the contract or to any third person on their behalf any material or immaterial benefit which he/she is not legally entitled, in order to obtain in exchange any advantage of any kind whatsoever during the bidding process or during the execution of the contract.
 - (b) The Bidder / Seller/ Contractor undertake not to enter into any undisclosed agreement or understanding, whether formal or informal with other bidders /Sellers. This applies in particular to prices, specifications, certifications, subsidiary contracts, submission or non-submission of bids or any other action to restrict competitiveness or to introduce cartelization in the bidding process.
 - (c) The Bidder / Seller / Contractor undertakes not to commit any offence under the relevant Anti-corruption Laws of India; further the Bidder/ Contractor will not use improperly, any information or document provided by the Employer as part of the business relationship, regarding plans, technical proposals and business details, including information contained or transmitted electronically for purposes of competition or personal gain and will not pass the information so acquired on to others.
 - (d) The Bidder / Seller / Contractor, when presenting his bid, undertakes to disclose any and all payments made, or is committed to or intends to make to agents, brokers or any other intermediaries in connection with the bidding process and/or award of the contract.
 - (e) The Foreign Bidder / Seller / Contractor, when presenting his bid, undertakes to disclose the name and address of agents and representative in India. Further, Indian Bidder / Seller / Contractor when presenting his bid, undertakes to disclose the name and address of its foreign principals or associates.
2. The Bidder / Seller / Contractor will not instigate and allure third persons/parties to commit offences outlined above or be an accessory to such offences.

Section 3 - Disqualification from Bidding Process and Exclusion from Future Contracts

1. If the Bidder(s)/ Seller(s) / Contractor(s), before award or during execution has committed a transgression through a violation of any provisions of Section 2 so as to put his reliability or credibility as Bidder/Seller/ Contractor into question, the Employers shall be entitled to disqualify the Bidder(s) /Contractor(s) from the bidding process or to terminate the contract, if signed on that ground.
2. If the Bidder/ Seller / Contractor has committed a transgression through a violation of Section 2 such as to put his reliability or credibility into question, the Employer shall be entitled to exclude including blacklist and put on holiday the Bidder/ Seller/ Contractor for any future tenders/contract award process. The imposition and duration of the exclusion will be determined by the severity of the transgression. The severity will be determined by the Employer taking into consideration the full facts and

circumstances of each case particularly taking into account the number of transgressions, the position of the transgressors within the company hierarchy of the Bidder and the amount of the damage. The exclusion will be imposed for a period not exceeding two (02) years.

3. A transgression is considered to have occurred if the Employer after due consideration of the available evidence concludes that no reasonable doubt is possible.
4. The Bidder/ Seller/ Contractor with its free consent and without any influence agrees and undertakes to respect and uphold the Employer's absolute rights to resort to and impose such exclusion and further accepts and undertakes not to challenge or question such exclusion on any ground, including the lack of any hearing before the decision to resort to such exclusion is taken. This undertaking is given freely and after obtaining independent legal advice.
5. Subject to full satisfaction of the Employer, the exclusion of Bidder/ Seller / Contractor could be revoked by the Employer if the Bidder/ Seller/ Contractor can prove that he has restored/ recouped the damage caused by him and has installed a suitable corruption prevention system in his organization.

Section 4 – Compensation for Damages including Forfeiture of Earnest Money Deposit/ Security Deposit/ Performance & Advance Bank Guarantees

1. If the Employer has disqualified the Bidder/ Seller / Contractor from the bidding process or has terminated the contract pursuant to Section 3, the Employer shall forfeit the Earnest Money Deposit / Bid Security, encash Contract Performance Bank Guarantees in addition to excluding the bidder from the future award process and terminating the contract.
2. In addition to 1 above, the Employer shall be entitled to take recourse to the relevant provisions of the contract related to Termination of Contract due to Bidder / Seller / Contractor's Default.

Section 5 - Previous Transgression

1. The Bidder/ Seller / Contractor swears on oath that no previous transgression impinging on anti-corruption principles /any malpractice as mentioned in Section-2 has occurred in the last three years immediately before signing of this Integrity Pact, with any other company / any Autonomous Body / any Public Sector Enterprise/ Undertaking in India / any Government Department in India.
2. If the Bidder/ Seller / Contractor makes incorrect statement on previous transgression as mentioned above in para 1, Bidder can be disqualified from the bidding process or the contract, if already awarded, can be terminated on this ground

Section 6 – Company Code of Conduct

1. Bidders/ Sellers / Contractors are also advised to have a company code of conduct (clearly rejecting the use of bribes and other unethical behavior) and a compliance program for the implementation of the code of conduct throughout the company.

Section 7 – Independent External Monitors (IEM)

1. The Employer will appoint competent and credible Independent External Monitor for this Pact. The task of the IEMs is to review independently and objectively, whether and to what extent the parties comply with the obligations under this agreement.

2. The IEMs are not subject to instructions by the representatives of the parties and performs his functions neutrally and independently. He shall report to Deputy Director Administration of the Employer or a person authorized by him.
3. The Bidder/Seller/Contractor accepts that the IEMs have the right to access without restriction to all Project documentations of the Employer including that provided by the Bidder/ Seller/Contractor. The Bidder/ Seller / Contractor will also grant the IEMs, upon his request and demonstration of a valid interest, unrestricted and unconditional access to his Project Documentations. The same is applicable to Subcontractors. The IEMs are under contractual obligation to treat the information and documents of the Bidder / Contractor / Sub-Contractors with confidentiality.
4. The Employer will provide to the IEMs sufficient information about all meetings among the parties related to the Project provided such meetings could have an impact on the contractual relations between the Employer and the Contractor. The parties offer to the IEMs the option to participate in such meetings.
5. As soon as the IEMs notices, or believes to notice, a violation of this agreement, he will so inform the Management/ Administration of the Employer (DDA of the Employer or a person authorized by him) and request to discontinue or to take corrective action, or to take other relevant action. The IEMs can in this regard submit non-binding recommendations. Beyond this, the IEMs has no right to demand from the parties that they act in a specific manner, refrain from action or tolerate action. However, Independent External Monitor shall give an opportunity to the Bidder/ Seller / Contractor to present its case before making its recommendations to the Employer.
6. The IEMs will submit a written report to DDA of the Employer or person authorized by him within 30 days from the date of reference or intimation to him by the Employer and, should the occasion arise, submit proposals for correcting problematic situations.
7. The Bidder / Contractor accepts that they shall not approach courts while the matter / complaint / dispute has been referred to the IEM in terms of this pact and they shall await IEM's decision before approaching any Court.
8. If the IEMs have reported to CMD of the Employer or a person authorized by him a substantiated suspicion of an offence under relevant IPC/ PC Act, and he has not, with in reason able time, taken visible action to proceed against such offence or reported it to the Chief Vigilance Officer, the IEMs may also transmit this information directly to the Central Vigilance Commissioner, Government of India.
9. The word "IEM" will include Singular or Plural.

Shri. Anil Kumar Sharma
aksharma1512@gmail.com

Shri. R Nagarajan
r.nagarajan.pfc@gmail.com

Section 8 - Pact Duration

1. This Pact comes into force from the date of signing by all the parties. It shall expire for the Contractor 12 months after the last payment under the respective Contract and for all other unsuccessful bidders 6 months after the Contract has been awarded.

Section 9 – Miscellaneous Provisions

1. This Pact is subject to Indian Law. The place of performance and jurisdiction shall be New Delhi.
2. Should one or several provisions of this Pact turn out to be invalid; the remainder of this Pact remains valid. In this case, the parties will strive to come to an agreement to their original intentions.

3. The actions stipulated in this Integrity Pact are without prejudice to any other legal action that may follow in accordance with the provisions of the extant law in force relating to any civil or criminal proceedings.
4. If the Bidder / Seller / Contractor is a JV partnership / Consortium, this agreement must be signed by all the partners of JV/ Consortium Partners as the case may be.

The Parties here by sign this Integrity Pact at.....on this.....day of20....

Employer

Bidder/Contractor

Joint Venture

Partner(s)/

member(s)		Consortium (As Applicable)
Witness	Witness	Witness
1. _____	1. _____	1.
2. _____	2. _____	2.